justice headed by BJP Rajya Sabha MP Sushil Kumar Modi expressed dismay over delays in the sending of recommendations by the high court collegiums, as the date of vacancy of a post becomes known the day a judge assumes charge.

At the 39th Chief Justices' Conference on April 29, Justice Ramana appealed to the high courts to expedite the process of sending the proposals to fill the vacancies. Arghya Sengupta, research director of Vidhi Centre for Legal Policy, believes that judges are not to be blamed for the failure to send recommendations in time. "Judges cannot be expected to keep track of who is retiring when. It's an administrative function that is not professionally managed in high courts and the Supreme Court. This causes delay in the first place. The solution lies in professionalising the judicial administration," he says. Former Supreme Court judge and Chief Justice of Andhra Pradesh High Court Justice Madan Lokur points towards an institutional barrier. "The chief justice of a high court is always an outsider and he or she takes time to get familiar with the lawyers, their merit and integrity. This delays the process," he says.

The rejection of recommendations by the government and the Supreme Court collegium also adds to the delay, as the high courts then have to find new names, starting the process all over again. According to Attorney-General K.K. Venugopal, around 35-40 per cent of names are rejected by the Supreme Court collegium. "There is complete lack of communication and an absence of transparency between the Supreme Court and the high courts in the manner of dealing with recommendations. The cause of rejection of recommendations is not known to the high court chief justice. So, rectification of an error is not possible," says Justice Lokur.

Many legal experts say that high courts should send a larger pool of names so that even after rejections, enough names remain to fill vacancies. Even the Supreme Court has often emphasised that high court chief justices should recommend vacancies as early as possible, irrespective of whether their old recommendations were cleared or not.

That is easier said than done. Most judges in private claim that there is a huge shortage of suitable and willing candidates. A collegium cannot recommend the name of an unsuitable candidate simply because vacancies are increasing. It has to consider several factors, including performance and integrity of a candidate. These decisions take time, as opinions are often subjective. "We must not forget that removal of judges is far more difficult than appointing them. One erroneous appointment can disrupt the entire system," says Supreme Court lawyer Utkarsh Singh.

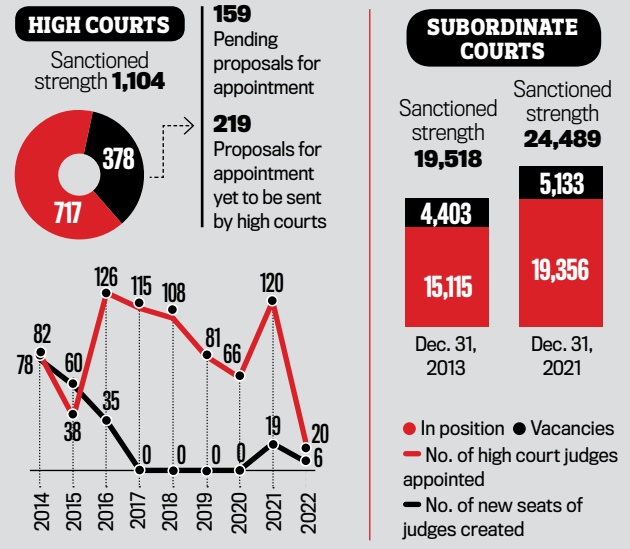
CHALLENGES OF THE COLLEGIUM

The delay also happens at the Supreme Court collegium level in clearing names. In 2020, Venugopal submitted to the apex court that the average time taken by the collegium to clear names was 119 days or 17 weeks, as against four weeks recommended by the MoP. Apart from these delays, the collegium process has also been criticised for lacking transparency.

Prior to 2018, collegium recommendations were not made available in the public domain. It changed under the tenure of the then CJI Dipak Misra, who facilitated the publishing of collegium resolutions on the Supreme Court's website. However, the reasons and rationale behind rejecting or accepting a name are still not published. The judicial fraternity is divided over public scrutiny of these decisions. There are fears that transpar-

VACANT SEATS OF JUSTICE

While existing vacancies remain, the number of new positions has not grown significantly in proportion to the rising case load

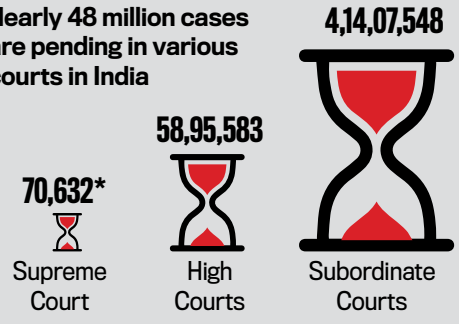


Source: Lok Sabha, data as on March 31, 2022

THE SANCTIONED STRENGTH OF JUDGES OF HIGH COURTS HAS INCREASED FROM **906 IN 2014 TO 1104 IN 2022**

JUSTICE DELAYED

Nearly 48 million cases are pending in various courts in India



Source: Supreme Court as on April 1, 2022, National Judicial Data Grid, as on May 1, 2022

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